

VENCI00555357 OPV Coalition et al vs Fox Canyon Groundwater Management Agency et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-09-18

Motion: Motion: Leave

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Tentative Ruling: OPV Coalition et al vs Fox Canyon Groundwater Management Agency et al

Case Number

VENCI00555357

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 09/18/2026 - 10:00

Nature of Proceedings

Motion: Leave

Tentative Ruling

*The hearing on the motion of Christopher Kenji Akune for leave to file an answer to the second amended complaint is continued and will be heard at 3:00 p.m. on September 18, 2026, together with the case management conference in this matter.

(1) Motion for Leave to File Answer

Defendant Christopher Kenji Akune, as administrator of the Estate of John Tadao Akune, filed a motion on August 24, 2026, for leave to file an answer to the second amended complaint. The unopposed motion is granted. The answer, in substantially the same form as attached to the motion, shall be filed and served on or before September 28, 2026.

(2) Case Management Conference

The following parties have filed case management conference (CMC) statements in advance of this CMC: (1) plaintiffs OPV Coalition, et al. (filed Sept. 3); Marathon Land, Inc. (Marathon) (filed Sept. 3); and (3) City of Camarillo (Camarillo) (filed Sept. 4).

The following issues are raised in these CMC statements:

(a) Phase 2 Discovery Scheduling Process

Plaintiffs report that Special Master Beckloff is anticipated to present recommendations for Phase 2 form discovery and pre-trial scheduling.

Marathon reports that an issue arising in the meet and confer process is whether to stagger discovery on claimed prescriptive groundwater rights versus discovery on landowner "self-help pumping" as a defense against prescriptive claims.

Camarillo reports that it has additional topics that will need to be included in form discovery, which are anticipated to involve an additional hearing with the Special Master and requests that this court set an additional CMC on October 16 or thereafter.

(b) Settlement

Plaintiffs report that some parties are now engaged in the settlement process and some are not yet engaged.

Marathon reports being engaged in settlement negotiations.

(c) Technical Work with the Special Master

Plaintiffs report that ITRC, the Special Master's technical consultant, continues to work on a compendium of historic pumping data. ITRC is expected to provide a proposal for addressing discrepancies in data reporting.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

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